

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 29, 2026
8:30 a.m.

2. LYDIA MARIE CAREL V. JEROME SILAS

22FL0110

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent pursuant to Code of Civil Procedure section 473, subdivision (b) on February 25, 2026, to set aside the court's order issued earlier that same day on February 25, 2026, on the grounds that Respondent mistakenly failed to register for the court's new remote appearance platform (implemented February 02, 2026), and therefore, Respondent did not appear at the February 25, 2026, hearing (related to two separate RFOs – one filed by the Respondent on December 01, 2025, and the other filed by the Petitioner on December 12, 2025).

On April 13, 2026, the Respondent filed a declaration with exhibits attached thereto.

On April 20, 2026, the Petitioner filed an objection to Exhibits A through H attached to Respondent's April 13, 2026, declaration on the grounds that the Petitioner was not aware of, or consented to, being recorded. The court sustains the objection and does not consider Exhibits A through H.

The court will vacate its February 25, 2026, order, thereby returning the case to its posture of having a tentative ruling posted February 24, 2026. The court has included the complete text of its February 24, 2026, tentative ruling below.

This matter is before the court for review on two separate Requests for Order (RFO). On December 01, 2025, Respondent filed an RFO requesting he be granted joint physical custody of the parties' children, NS (age 8) and SC (age 7), as well as Temporary Emergency Custody pending the hearing, which was set for December 31, 2025. The court denied Respondent's request for Temporary Emergency Orders pending the hearing.

On December 12, 2025, the Petitioner filed an RFO to modify visitation and require the parties' minor children to be returned to Sacramento, California. Specifically, the Petitioner requested the court to set specific visitation dates for holidays and Summer. The RFO also included a request for Temporary Emergency Orders. On December 12, 2025, the court issued an order shortening time¹ and granted Petitioner Temporary Emergency Orders as follows: Respondent to return children to the Sacramento, California airport no later than December 14, 2025; Respondent shall text Petitioner the flight information at least 24 hours in advance of the flight departure; Respondent shall text Petitioner when the children are ready to be exchanged at the airport; the exchange shall take place at curbside at the airport.

¹ The court required service on the Respondent by December 19, 2025, and any Responsive Pleading to be filed by December 24, 2025. The court deferred referring the parties to CCRC until the hearing, which was set for December 31, 2025.

At the hearing on December 31, 2025, the court amended the Temporary Emergency Orders, requiring both parties to cooperate in returning the minor children to the Petitioner no later than 5:00 p.m. on January 02, 2026. The court also referred the parties to a CCRC session set for January 12, 2026; and continued the hearing to February 25, 2026.

A CCRC “One Parent” report was submitted to the court on January 12, 2026, indicating that only the Petitioner appeared for CCRC, for which reason, the CCRC counsellor was unable to make any recommendations to the court. A copy of the CCRC report was mailed to both parties that same day, per the Clerk’s Certificate of Mailing, also filed January 12, 2026.

The court intends to deny the Respondent’s RFO and grant the Petitioner’s RFO. However, the court does not have specific dates to include in the anticipated order. Appearances are required at 8:30 a.m., Wednesday, February 25, 2026, in Department 12, at which time, the court will ask the Petitioner to provide the specific dates to be included in the court’s order.

TENTATIVE RULING #2: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, APRIL 29, 2026, FOR ORAL ARGUMENT CONCERNING THE TENTATIVE RULING ORIGINALLY ISSUED BY THIS COURT ON FEBRUARY 24, 2026, A COPY OF WHICH IS INCLUDED ABOVE.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 29, 2026
8:30 a.m.

3. MATTHEW GLAZE V. SHYANNE LECKIE

24FL0571

This matter is before the court for hearing of two competing Requests for Order (RFO), both regarding child custody and visitation.

The first RFO was filed by the Petitioner on March 02, 2026, and included a request for temporary emergency orders, which the court denied. The filing of the Petitioner's RFO prompted the court to refer the parties to a CCRC session set for March 16, 2026. Proof of service filed March 10, 2026, shows the RFO and CCRC referral (but not the court's Notice of Tentative Ruling) was personally served on the Respondent on March 08, 2026.

The second RFO was filed by the Respondent on March 03, 2026. The court issued the same CCRC referral as it did for Petitioner's RFO, setting a CCRC session for March 16, 2026. Proof of service filed March 09, 2026, shows the RFO and supporting documents (but not the court's Notice of Tentative Ruling) were personally served on the Petitioner on March 05, 2026.

The court is in receipt of a CCRC report dated March 16, 2026, a copy of which was mailed to both parties on March 18, 2026, per the Clerk's Certificate of Mailing filed that date. The court notes that the copy mailed to the Respondent was returned to the court as undeliverable.

Neither party filed a Responsive Declaration to the other party's RFO. The court notes, however, that the competing RFOs are essentially responsive to each other.

Both parties filed a supplemental declaration regarding the CCRC report: the Petitioner filed his on March 23, 2026, and the Respondent filed hers on April 16, 2026. However, neither party filed a proof of service for their respective supplemental declarations. Therefore, the court does not consider either of these filings.

The court finds that the Agreements reached by the parties as contained in the CCRC Report, as well as the Recommendations of the CCRC counsellor, are in the best interests of the parties' child and so adopts them as the orders of the court.

TENTATIVE RULING #3: THE COURT FINDS THAT THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT DATED MARCH 16, 2026, ARE IN THE BEST INTERESTS OF THE PARTIES' CHILD AND SO ADOPTS THEM AS THE ORDERS OF THE COURT.

BECAUSE THERE IS NO PROOF OF SERVICE FOR THE COURT'S NOTICE OF TENTATIVE RULING IN THE COURT'S FILE, THE COURT WILL NOT LIMIT THE PARTIES' ABILITY TO PRESENT ORAL ARGUMENT UNDER LOCAL COURT RULE 8.05.07 (GENERALLY REQUIRING A TIMELY ORAL ARGUMENT REQUEST, AS WELL AS NOTICE UPON THE OTHER PARTY, ON THE DAY THE TENTATIVE RULING IS ISSUED).